



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Austin Weaver #556

Work Assignment: Troop/Division - A; Post/Unit – 3-Cartersville

INCIDENT REPORT # DPS00166562

Related Crash Reports: None ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 4/30/2024

Time: 1100 hours

Location: Gun range at Hayes State Prison (firearms in-service)

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Captain Shawn Prather #11, Cpl. Jacob Tow #337 and TFC Austin Weaver #556.

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 04/27/2024

Time: 2246 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

TFC Weaver was operating stationary RADAR on Interstate 75 northbound near mile marker 303.5 when he checked a white Honda passenger car at 105 mph. TFC Weaver attempted to intercept the suspect, but he accelerated and attempted to flee.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A If Yes, explain: TFC Weaver informed the Troop A Communications Center that he was attempting to "catch up" to suspect and provided his location. TFC Weaver continued to update his location before advising the Troop A Communications Center that he was in a pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once TFC Weaver advised that he was in a pursuit, Troop A Dispatchers cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. The Troop A Communications Center also notified the Bartow County Sheriff's Office of the pursuit.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A

If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes

☐ No

If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A

If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on I-75 northbound near mile marker 306. The pursuit continued north until the suspect pulled over and stopped in the rest area near mile marker 308. The pursuit lasted for approximately 50 seconds and traveled a total distance of approximately 1.5 miles.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes

☐ No

If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A

If Yes, explain: The pursuit entered Gordon County which is assigned to Post 43 Calhoun. No Post 43 Trooper assisted in the pursuit.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A

If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A

If Yes, explain: The suspect's actions supported a felony charge of fleeing and attempting to elude.

6. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes

☐ No

If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes

☐ No

If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes

☐ No

If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes

☐ No

If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No

If Yes, explain: TFC Weaver experienced an adrenalin rush during the pursuit.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

3. Was the in-car camera working properly?

☒ Yes

☐ No

If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TFC Weaver properly activated his blue lights and siren as he attempted to intercept the suspect. TFC Weaver exercised effective Officer safety practices and properly executed a felony stop during the arrest of the suspect.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during nighttime hours with clear skies and the roadway surface was dry. The traffic conditions on Interstate 75 northbound would be described as moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator fled at a high speeds and in a reckless manner as he attempted to avoid capture.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A

If Yes, explain:

13. Address any damage to vehicles.

☒ N/A

If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A

If Yes, explain: TFC Weaver has been involved in multiple pursuits during his career with GSP.

2. Past use of techniques and high speed driving.

☐ N/A

If Yes, explain: TFC Weaver is an experienced emergency vehicle operator. TFC Weaver has received EVOC and Advanced EVOC Training. He has also received the annual Pursuit Liability Training and the PIT Refresher Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A

If Yes, explain: TFC Weaver properly activated his blue lights and siren as he attempted to intercept the suspect. TFC Weaver exercised good Officer safety practices and properly executed a felony stop during the arrest of the suspect.

2. Areas for improvement.

☒ N/A

If Yes, explain:

3. Other considerations.

☐ N/A

If Yes, explain: TFC Weaver conducted a felony stop during this incident and a use of force report was completed for displaying his duty weapon.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A

If Yes, explain:

Captain Shawn Prather #11

CAPT.  #11

Reviewing Officer

5/22/2024
Date